

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW,
AVERS LOGISTICS LTD,
CJ DELUZ NIGERIA LTD.

Complainants,

vs.

RESPONDENTS' REPLY TO EXCEPTIONS

ALLA SOLOVYEVA,
RAYA BAKHIREV.

Respondents.

At the outset, I would respectfully ask the Commission not to give any consideration to counsel for Complainants' exceptions brief as it makes outrageous and unsubstantiated statements against the Presiding Officer — who is also the Chief Administrative Law Judge. It is submitted that such conduct violates the rules of professional conduct and simply is not professional.

For example, on page five of the exceptions brief, Mr. Nussbaum says: "it appears as though the Presiding Officer is actually advocating on behalf of respondents." Further down the page, Mr. Nussbaum then states as a fact: "The Commission is also respectfully asked to consider that the ID may essentially be null and void in that during the process of unfairly advocating on behalf of the respondents, the Presiding Officer violated her own rules and directives..." Incidentally, Mr. Nussbaum did not think that the same Presiding Officer was advocating on behalf of respondents in another case (Docket No. 16-16), where the same Presiding Officer ruled in part against the Respondents.

It is Mr. Nussbaum who violated the rules with respect to motion filings, with respect to discovery and was allowed to nonetheless proceed with the motions and was granted extension after extension. For example, when Mr. Nussbaum filed a motion for reconsideration of the decision on his motion to compel, he violated the page-limit regulation of *Rule* 502.71(d), however, he was still permitted to go forward with his motion. (*See* Docket Entry #24).

Mr. Nussbaum then states another falsehood on page 6 of his exceptions brief, that the documents that were relied upon in Respondents' brief were never produced in discovery. Attached as last two pages of this reply is proof of receipt by Mr. Nussbaum of document production — the same documents that were used in Respondent's brief.

As to the substance, I would respectfully refer the Commission to Respondents' brief — some arguments are reproduced here that go directly to the points raised in the Complainants' exceptions brief.

On May 5, 2017, MTL wrote to Complainants: "Chinedu, This is our storage policy, 30 days free if you ship with us. I need to get your confirmation ASAP, or we are not loading on Monday." (Respondent's Exhibit #5, pages 1-2).

Respondent's proposed findings of fact (§§ 3-38) list the invoices that were provided to the Complainants for the subject vehicles, which were never satisfied.

Respondent's Exhibit #1 confirms (via the enclosed delivery confirmation from DHL) that Complainants received copies of all invoices for the outstanding charges on April 4, 2018. (See also pages 12-14 of such exhibit, and Respondent's exhibits 11 and 12).

Throughout his brief, including on page 40, and also in his exceptions brief, Mr. Nussbaum says the same baseless thing over and over again in hopes that it will resonate with the Commission, namely that MTL "willfully cut in half, dismantled, and destroyed two

automobiles.” Mr. Nussbaum does not cite to any evidence where anything even remotely to this happened.

The reference in the invoice #83486 (Respondent’s Exhibit #2, page 4) to “cutting and dismantling” refers to something else, and Complainants are aware of this because they know the condition of their own vehicles that they purchased. Respondents’ proposed findings of fact (40 to 42) explain this.

One of the subject vehicles that appears in this invoice has a Vin# ending in 3906, and looking at the physical condition of this vehicle, there are dangling parts noted, such as the front bumper. (Respondent’s Exhibit #6, page 55).

Complainants refused to pick up their vehicles, and they never went to even check the conditions of the vehicles, so there is no basis to say that the automobiles were cut in half. The Commission is respectfully referred to the following evidence taken from Respondents’ findings of fact and exhibits cited in such:

#43. Complainants never came to inspect any of the vehicles that arrived at their destination, which were subject of Invoice #83486, and Complainants refused to clear such vehicles even though advised to do so. (Respondent’s Exhibit #7).

#44. Complainant, Mr. Chinedu, was advised by Andre Bou Jaoude, that the vehicles that are the subject of Invoice #83486 had arrived at destination.

#45. Since Complainants never appeared to view the subject vehicles referenced in #43 above, they have no firsthand knowledge as to what “cutting and dismantling” meant. Complainants only saw such statement on the invoice.

#46. Complainants’ counsel, Mr. Nussbaum, without obtaining any authorization for such, began to contact Andre Bou Jaoude and threatened him with legal action. (Respondent’s Exhibit #13).

#47. On June 28, 2018, MTL wrote to the Complainant, Mr. Chinedu, and advised him that his vehicles are ready for pickup. (Respondent’s Exhibit #13).

#48. Complainants wrote to MTL on June 29, 2018 requesting MTL to stop contacting him. (Respondent’s Exhibit #13).

It appears that the Complainants intentionally did not pick up their vehicles because if they had, they could not file this case with the Federal Maritime Commission. It is submitted that people who act in good faith, without any ulterior motive, would have behaved differently. For example, Complainants should have been happy to receive their vehicles even though they still owed around \$70,000 in charges. Why did they not even attempt to go to the port to look at the vehicles?

An additional piece of evidence appears in Respondent's Exhibit #17. Although the actual Facebook post has been deleted by Complainants, MTL provided an email which contained a phrase in the post, which has not been produced by Complainants: "Hi. I have a big case. Alla sold my 17 cars and..." It is submitted that it appears as though Complainants were counting on these vehicles to be disposed so that they can file this case, and such is consistent with their behavior, as mentioned above, in refusing to pick up the vehicles.

ISSUES AS TO ADDITIONAL DISCOVERY

This section responds to Mr. Nussbaum's statements that begin on page 23 of his brief. Respondents incorporate by reference Docket Entry #25, which addresses the four vehicles and container that is the subject of this section. The following are additional comments.

Vin#2288

MTL is listed as the Forwarding Agent as to this shipment of a vehicle that has been abandoned by Complainants. It appears in this transaction, MTL acted as the agent to shipper, DMD Auto. Complainants were from to subpoena any information they wished from the clearly identified ocean carrier or the shipper.

Complainants never paid any storage with respect to this vehicle that has been in storage for over three years. See Respondents' proposed finding of fact #1 and #25-26. MTL continuously asked Complainants to pay for the storage, and now they are seeking copies of AES declarations.

Vin#0283

Complainants never paid any storage in connection with this vehicle either. (Respondent's proposed findings of fact #29-30. They have abandoned this vehicle.

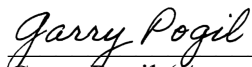
Container# TCNU 2645133

Complainants and Mr. Nussbaum absolutely have an ulterior motive in requesting irrelevant documents when Complainants refused to pick up their vehicles at destination, and Mr. Nussbaum interfered with the agent when he advised Complainants to pick up such. (Respondents proposed findings of fact #46-48).

As to the issue of two dock receipts with respect to the subject vehicles in this container. Mr. Nussbaum likes to put forth a baseless statement as to what other NVOCCs would have done, however, it is submitted that no other NVOCC would have simply shipped and released cargo with over \$70,000 in outstanding unpaid charges, but such was done in this case in good faith, which is why there was a second dock receipt, to enable the Complainants to pick up their vehicles, but they refused to pick up such.

Respectfully submitted,

Dated: February 22, 2022



Garry Pogil (*Attorney for Respondents*)
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New York, NY 10036
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Garry Pogil <garry.pogil@gmail.com>

Response to Written Discovery (Docket No. 20-12)

2 messages

Garry Pogil <garry.pogil@gmail.com>

Tue, Dec 29, 2020 at 1:29 PM

To: Marcus Nussbaum <marcus.nussbaum@gmail.com>

Bcc: Alla Solovyev <alla@mtlworld.com>, Raya Bakhirev <accounting@mtlworld.com>

 **NEGOTIATION with CHINEDU-Ex.4.pdf**

 **Salvage Documents as to subject cars (20-12)-Ex...**

Good afternoon,

Please find attached the Respondents' response to written discovery.

13 attachments

 **Answers to Interrogatories directed to MTL Alla Solovyeva Docket 20-12_.pdf**
429K

 **Answers to Requests for Admissions_SOLOVYEVA_MTL (20-12).pdf**
447K

 **Answers to Interrogatories_BAKHIREV (20-12).pdf**
333K

 **Answers to Requests for Admissions_BAKHIREV (20-12).pdf**
368K

 **Response to Document Demands_SOLOVYEVA_MTL_BAKHIREV_(20-12).pdf**
236K

 **Invoices to Chinedu (20-12)-Ex.1.pdf**
1220K

 **Payment Receipts (20-12)-Ex.2.pdf**
11280K

 **MTL's Transaction Listing (20-12)-Ex.3.pdf**
2234K

 **Email from Andre Bou Jaoude to MTL (June 25, 2018)-Ex.6.pdf**
56K

 **Junk Car Releases (20-12)_Redacted-Ex.7_Redacted.pdf**
2054K

 **Dock Receipt listing ALJ Forwarders as Consignee (20-12)-Ex.8.pdf**
78K

 **Proof that Chinedu received Invoices for Inland Freight (20-12)-Ex.9.pdf**
4029K

 **Cargo Release (Vin #283) 20-12-Ex.10.pdf**
144K

Raya Bakhirev <accounting@mtlworld.com>

Tue, Dec 29, 2020 at 2:25 PM

To: Garry Pogil <garry.pogil@gmail.com>

Dear Garry,



Garry Pogil <garry.pogil@gmail.com>

FMC Docket No. 20-12

1 message

garry.pogil@gmail.com <garry.pogil@gmail.com>
To: "Marcus A. Nussbaum" <marcus.nussbaum@gmail.com>

Wed, May 19, 2021 at 2:51 PM

Hi Marc,

Attached are the storage invoices for the Georgia and California warehouses. For the warehouse in Savannah, they have not responded with an invoice, so attached is the spreadsheet of MTL's inventory held by them, which included your client's vehicle, VIN#942 (entry #55).

Garry Pogil, Esq
1120 Avenue of the Americas
4th Floor
New York, NY 10036
212-626-6825 / 917-593-1466

3 attachments



Invoice (Baltic Auto, Savannah, GA).pdf
31K



Invoices I-10043-17STORAGE (NN Safeway Shipping Co.).pdf
9K



Copy of MTL INVENTORY (Houston Warehouse).xlsx
19K